

**MANATEE COUNTY SHERIFF'S OFFICE
RETURN OF SERVICE**

Case No. 2021CC006858
Citation No.
Certificate No.
State: Florida
County: Manatee
Court: Manatee County

Plaintiff: Colonial Manor MHC Holdings LLC

Defendant: Marlin J Yoder and If Deceased All Unkown Parties
Beneficiaries Heirs Successors and Assigns of Marlin

Plaintiff/Attorney:
Lutz Bobo & Telfair PA
2 N Tamiami Trl
Ste 500
Sarasota, FL 34236

Person to Serve: Marlin J Yoder

Address: And If Deceased All Unkown Parties Beneficiaries
Heirs Successors and Assigns of Marlin J Yoder and
All Parties Having or Claiming to have any Right Title
or Interest in the Property Herein Described

Type of Writ: 5 Day Summons, Complaint for Eviction, Exhibit "A" Demand for Payment of Lot Rental
Amount, Certified Mail Information, Certified Mail Receipt

The above referenced writ was received on October 25, 2021 at 8:50 AM and served the same by the undersigned officer at 1:44 PM on October 27, 2021. Service was completed at And If Deceased All Unkown Parties Beneficiaries Heirs Successors and Assigns of Marlin J Yoder and All Parties Having or Claiming to have any Right Title or Interest in the Property Herein Described 900 9 Ave E Lot 168 Palmetto, FL 34221 in Manatee County, Florida.

POSTED: by attaching a copy of this writ, together with a copy of the complaint, petition, or other initial pleading, if any, in a conspicuous place on the property described within. The within named tenant could not be found and there was no person residing therein who is 15 years of age or older at the usual place of abode in Manatee County, Florida, upon whom service could be made, after the provisions of Sections 48.031(3)(b) or 78.065(2)(c) or 197.522(2)(a) of Florida Statutes have been met.

NOTES: Knocked On Door, No Answer//posted on door

ATTEMPTS:

Attempt: 10/27/2021 @ 7:00 AM - And If Deceased All Unkown Parties Beneficiaries Heirs Successors and Assigns of Marlin J Yoder and All Parties Having or Claiming to have any Right Title or Interest in the Property Herein Described 900 9 Ave E Lot 168 Palmetto, FL 34221

Note: Knocked On Door, No Answer

Deputy: Lawrence Address

CHARLES R. WELLS, SHERIFF
MANATEE COUNTY, FLORIDA



Lawrence Address 10001970
Deputy, Manatee County Sheriff's Office

Sheriff's Number: 21016096

IN THE COUNTY COURT IN AND FOR MANATEE COUNTY, FLORIDA
COLONIAL MANOR MHC HOLDINGS, LLC,

Plaintiff,

Case No: 2021 CC 6858
Civil Division
Landlord/Tenant Action

v.

MARLIN J. YODER, AND
IF DECEASED, ALL UNKNOWN PARTIES,
BENEFICIARIES, HEIRS, SUCCESSORS
AND ASSIGNS OF MARLIN J. YODER
AND ALL PARTIES HAVING OR CLAIMING
TO HAVE ANY RIGHT, TITLE, OR INTEREST
IN THE PROPERTY HEREIN DESCRIBED;
AND ALL UNKNOWN UNAUTHORIZED OCCUPANTS,

Defendants.

EVICTIION SUMMONS/RESIDENTIAL

TO: MARLIN J. YODER, AND
IF DECEASED, ALL UNKNOWN PARTIES,
BENEFICIARIES, HEIRS, SUCCESSORS
AND ASSIGNS OF MARLIN J. YODER
AND ALL PARTIES HAVING OR CLAIMING
TO HAVE ANY RIGHT, TITLE, OR INTEREST
IN THE PROPERTY HEREIN DESCRIBED
900 9th Avenue E., Lot 168
Palmetto, Florida 34221

RECEIVED
CIVIL
2021 OCT 26 AM 8:50
SHERIFF
MANATEE COUNTY FLORIDA

PLEASE READ CAREFULLY

You are being sued by COLONIAL MANOR MHC HOLDINGS, LLC to require you to move out of the place where you are living for the reasons given in the attached complaint.

You are entitled to a trial to determine whether you can be required to move, but you MUST do ALL of the things listed below. You must do them within five (5) days (not including Saturday, Sunday, or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted at your home.

THE THINGS YOU MUST DO ARE AS FOLLOWS:

5D
1B

21016096

024376 \$80.00 de

(1) Write down the reason(s) why you think you should not be forced to move. The written reason(s) must be given to the clerk of the court at Manatee County Courthouse, 1115 Manatee Avenue West, Bradenton, Florida 34205.

(2) Mail or give a copy of your written reason(s) to:

Charles Lovings, Esq.
Lutz, Bobo & Telfair, P.A.
2155 Delta Boulevard, Suite 210-B
Tallahassee, Florida 32303

(3) Pay to the clerk of the court the amount of rent that the attached complaint claims to be due, along with the registry fee, in accordance with Florida Statute (3% of the first \$500, 1.5% of everything thereafter, effective 7/1/04) and any rent that becomes due until the lawsuit is over. If you believe that the amount claimed in the complaint is incorrect, you should file with the clerk of the court a motion to have the court determine the amount to be paid. If you file a motion, you must attach to the motion any documents supporting your position and mail or give a copy of the motion to the plaintiff/plaintiff's attorney.

(4) If you file a motion to have the court determine the amount of rent to be paid to the clerk of the court, you must immediately contact the office of the judge to whom the case is assigned to schedule a hearing to decide what amount should be paid to the clerk of the court while the lawsuit is pending.

IF YOU DO NOT DO ALL OF THE THINGS SPECIFIED ABOVE WITHIN 5 WORKING DAYS AFTER THE DATE THAT THESE PAPERS WERE GIVEN TO YOU OR TO A PERSON WHO LIVES WITH YOU OR WERE POSTED AT YOUR HOME, YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE

(5) If the attached complaint also contains a claim for money damages (such as unpaid rent), you must respond to that claim separately. You must write down the reasons why you believe that you do not owe the money claimed. The written reasons must be given to the clerk of the court at the address specified in paragraph (1) above, and you must mail or give a copy of your written reasons to the plaintiff/plaintiff's attorney at the address specified in paragraph (2) above. This must be done within twenty (20) days after the date these papers were given to you or to a person who lives with you or were posted at your home. This obligation is separate from the requirement of answering the claim for eviction within five (5) working days after these papers were given to you or to a person who lives with you or were posted at your home.

THE STATE OF FLORIDA: To Each Sheriff of the State: You are commanded to serve this **summons** and a copy of the complaint in this lawsuit on the above-named defendant.

DATED on the 21~~ST~~ day of SEPT~~EMBER~~, 2021

Angelina "Angel" Colonnese
Clerk of the County Court



R. Johnston

By _____

Deputy Clerk

If you are a person with a disability who needs an accommodation in order to participate in a proceeding, you are entitled, at no cost to you, the provision of certain assistance. Please contact the Manatee County Jury Office, P.O. Box 25400, Bradenton, Florida 34206. Telephone (941) 741-4062. If you are hearing impaired, please call 711 within 2 working days of your receipt of your notice to appear in Court.

NOTIFICACION DE DESALOJO/RESIDENCIAL

**A: MARLIN J. YODER, AND
IF DECEASED, ALL UNKNOWN PARTIES,
BENEFICIARIES, HEIRS, SUCCESSORS
AND ASSIGNS OF MARLIN J. YODER
AND ALL PARTIES HAVING OR CLAIMING
TO HAVE ANY RIGHT, TITLE, OR INTEREST
IN THE PROPERTY HEREIN DESCRIBED
900 9th Avenue E., Lot 168
Palmetto, Florida 34221**

SIRVASE LEER CON CUIDADO

Usted esta siendo demandado por **COLONIAL MANORMHC HOLDINGS, LLC** para exigirle que desaloje el lugar donde reside por los motivos que se expresan en la demanda adjunta.

Usted tiene derecho a ser sometido a juicio para determinar si se le puede exigir que se mude, pero **ES NECESARIO** que haga **TODO** lo que se le pide a continuacion en un plazo de 5 dias (no incluidos los sabados, domingos, ni dias feriados) a partir de la fecha en que estos documentos se le entregaron a usted o a una persona que vive con usted, o se colocaron en su casa.

USTED DEBERA HACER LO SIGUIENTE:

(1) Escribir el (los) motivo(s) por el (los) cual(es) cree que no se le debe obligar a mudarse. El (Los) motivo(s) debera(n) entregarse por escrito al secretario del tribunal en el Manatee County Courthouse, 1115 Manatee Avenue West, Bradenton, Florida 34205.

(2) Enviar por correo o darle su(s) motivo(s) por escrito a:

Charles Lovings, Esq.
Lutz, Bobo & Telfair, P.A.
2155 Delta Boulevard, Suite 210-B
Tallahassee, Florida 32303

(3) Pagarle al secretario del tribunal el monto del alquiler que la demanda adjunta reclama como adeudado, así como cualquier alquiler pagadero hasta que concluya el litigio. Si usted considera que el monto reclamado en la demanda es incorrecto, deberá presentarle al secretario del tribunal una moción para que el tribunal determine el monto que deba pagarse. Si usted presenta una moción, deberá adjuntarle a esta cualesquiera documentos que respalden su posición, y enviar por correo o entregar una copia de la misma al demandante/abogado del demandante.

(4) Si usted presenta una moción para que el tribunal determine el monto del alquiler que deba pagarse al secretario del tribunal, deberá comunicarse de inmediato con la oficina del juez al que se le haya asignado el caso para que programe una audiencia con el fin de determinar el monto que deba pagarse al secretario del tribunal mientras el litigio este pendiente.

SI USTED NO LLEVA A CABO LAS ACCIONES QUE SE ESPECIFICAN ANTERIORMENTE EN UN PLAZO DE 5 DÍAS LABORABLES A PARTIR DE LA FECHA EN QUE ESTOS DOCUMENTOS SE LE ENTREGARON A USTED O A UNA PERSONA QUE VIVE CON USTED, O SE COLOQUEN EN SU CASA, SE LE PODRÁ DESALOJAR SIN NECESIDAD DE CELEBRAR UNA AUDIENCIA NI CURSARSELE OTRO AVISO

(5) Si la demanda adjunta también incluye una reclamación por daños y perjuicios pecunarios (tales como el incumplimiento de pago del alquiler), usted deberá responder a dicha reclamación por separado. Deberá exponer por escrito los motivos por los cuales considera que usted no debe la suma reclamada, y entregarlos al secretario del tribunal en la dirección que se especifica en el párrafo (1) anterior, así como enviar por correo o entregar una copia de los mismos al demandante/abogado del demandante en la dirección que se especifica en el párrafo (2) anterior. Esto deberá llevarse a cabo en un plazo de 20 días a partir de la fecha en que estos documentos se le entregaron a usted o a una persona que vive con usted, o se coloquen en su casa. Esta obligación es aparte del requisito de responder a la demanda de desalojo en un plazo de 5 días a partir de la fecha en que estos documentos se le entregaron a usted o a una persona que vive con usted, o se coloquen en su casa.

CITATION D'EVICITION/RESIDENTIELLE

A: **MARLIN J. YODER, AND
IF DECEASED, ALL UNKNOWN PARTIES,
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IN THE PROPERTY HEREIN DESCRIBED
900 9th Avenue E., Lot 168
Palmelto, Florida 34221**

LISEZ ATTENTIVEMENT

Vous etes poursuivi par **COLONIAL MANOR MHC HOLDINGS, LLC** pour exiger que vous evacuez les lieux de votre residence pour les raisons enumerees dans la plainte ci-dessous.

Vous avez droit a un proces pour determiner si vous devez demenager, mais vous devez, au prealable, suivre les instructions enumerees ci-dessous, pendant les 5 jours (non compris le samedi, le dimanche, ou un jour ferie) a partir de la date ou ces documents ont ete donnees a vous ou a la personne vivant avec vous, ou ont ete affichees a votre residence.

LISTE DES INSTRUCTIONS A SUIVRE:

(1) Enumerer par ecrit les raisons pour lesquelles vous pensez ne pas avoir a demenager. Elles doivent etre remises au clerck du tribunal a Manatee County Courthouse, 1115 Manatee Avenue West, Bradenton, Florida 34205.

(2) Envoyer ou donner une copie au:

Charles Lovings, Esq.
Lutz, Bobo & Telfair, P.A.
2155 Delta Boulevard, Suite 210-B
Tallahassee, Florida 32303

(3) Payer au clerck du tribunal le montant des loyers dus comme etabli dans la plainte et le montant des loyers dus jusqu'a la fin du proces. Si vous pensez que le montant etabli dans la plainte est incorrect, vous devez presenter au clerck du tribunal une demande en justice pour determiner la somme a payer. Pour cela vous devez attacher a la demande tous les documents soutenant votre position et faire parvenir une copie de la demande au plaignant/avocat du plaignant.

(4) Si vous faites une demande en justice pour determiner la somme a payer au clerck du tribunal, vous devrez immediatement prevenir le bureau de juge qui presidera au proces pour fixer la date de l'audience qui decidera quelle somme doit etre payee au clerck du tribunal pendant que le proces est en cours.

SI VOUS NE SUIVEZ PAS CES INSTRUCTIONS A LA LETTRE DANS LES 5 JOURS QUE SUIVENT LA DATE OU CES DOCUMENTS ONT ETE REMIS A VOUS OU A LA PERSONNE HABITANT AVEC VOUS, OU ONT ETE AFFICHES A VOTRE RESIDENCE, VOUS POUVEZ ETRE EXPULSES SANS AUDIENCE OU SANS AVIS PREALABLE

(5) Si la plainte ci-dessus contient une demande pour dommages pecuniaires, tels des loyers arrieres, vous devez y repondre separement. Vous devez enumerer par ecrit les raisons pour lesquelles vous estimez ne pas devoir le montant demande. Ces raisons ecrites doivent etre donnees au clerck du tribunal a l'adresse specifiee dans le paragraphe (1) et une copie de ces raisons donnee ou envoyee au plaignant/avocat du plaignant a l'adresse specifiee dans le paragraphe (2). Cela doit etre fait dans les 20 jours suivant la date ou ces documents ont ete presentes a vous ou a la personne habitant avec vous, ou affichees a votre residence. Cette obligation ne fait pas partie des instructions a suivre en reponse au proces d'eviction dans les 5 jours suivant la date ou ces documents ont ete presentes a vous ou a la personne habitant avec vous, ou affichees a votre residence.